

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1551

By: Patzkowsky

AS INTRODUCED

An Act relating to agriculture; amending 2 O.S. 2021, Section 3-220, which relates to noxious weeds; providing that poison hemlock and Kudzu are a noxious weed; providing for the eradication of poison hemlock and Kudzu; removing fine; requiring counties and state agencies to treat and prevent noxious weeds on certain lands; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 2 O.S. 2021, Section 3-220, is amended to read as follows:

Section 3-220. A. 1. The plants musk thistle (*Carduus nutans* L.), Scotch thistle (*Onoprodum acanthium* L.), ~~and~~ Canada thistle (*Cirsium arvense*), poison hemlock (*Conium maculatum*), and Kudzu (*Pueraria montana*) are designated as noxious weeds. The Legislature finds that these thistles and poison hemlock and Kudzu are a public nuisance in all counties across this state.

2. It shall be the duty of every landowner in each county to treat, control, or eradicate all Canada thistles, musk thistles, ~~or~~ Scotch thistles, poison hemlock, and Kudzu growing on the

landowner's land every year as shall be sufficient to prevent these  
thistles, poison hemlock, and Kudzu from going to seed.

3. The Department of Transportation, the boards of county  
commissioners, and any other public, private, or corporate entity  
who shall maintain rights-of-way in the State of Oklahoma shall be  
responsible for removing any thistle, poison hemlock, and Kudzu  
infestation that occurs within their jurisdiction.

~~4. Failure of the landowner to treat, eradicate, or control all  
musk, Canada, or Scotch thistle may result in a fine not to exceed  
One Thousand Dollars (\$1,000.00) for each violation per day~~ All  
counties and state agencies shall treat, control, or eradicate all  
Canada thistles, musk thistles, or Scotch thistles, poison hemlock  
and Kudzu growing on lands owned by or leased by a county or state  
agency every year as shall be sufficient to prevent these thistles,  
poison hemlock, and Kudzu from going to seed.

5. Upon written complaint, the State Department of Agriculture  
shall inspect the type of thistle, poison hemlock, or Kudzu  
infestation, assess the nature and extent of the thistle, poison  
hemlock, or Kudzu infestation on the property of the landowner and  
determine the most appropriate thistle or weed treatment, control,  
or eradication method available for the type of thistle, poison  
hemlock, or Kudzu and location of the property.

B. The State Board of Agriculture shall:

1        1. Promulgate rules setting categories or degrees of  
2 infestation which would require specified treatment, control, or  
3 eradication;

4        2. Include musk thistles, Scotch thistles, ~~and~~ Canada thistles,  
5 poison hemlock, and Kudzu, as prohibited noxious weed and weed seed  
6 pursuant to the Department's authority and responsibility under  
7 Article 8 of the Oklahoma Agricultural Code;

8        3. By November 1, 2000, and annually thereafter prior to the  
9 growing season of musk thistles, Scotch thistles, ~~and~~ Canada  
10 thistles, poison hemlock, and Kudzu, complete an annual survey  
11 detailing the degree of infestation of these thistles, poison  
12 hemlock, and Kudzu across the state. The results of these surveys  
13 shall be reported to Oklahoma State University; and

14        4. In all counties of this state, provide information to  
15 newspapers of general circulation stating that musk thistles, Scotch  
16 thistles, ~~and~~ Canada thistles, poison hemlock, and Kudzu are a  
17 public nuisance and that it is the duty of every public, private, or  
18 corporate landowner to treat, control, or eradicate these thistles,  
19 poison hemlock, and Kudzu growing on any property owned by the  
20 landowner. The information shall be provided at the beginning of  
21 the cycle of growth of the musk thistles, Scotch thistles, ~~and~~  
22 Canada thistles, poison hemlock, and Kudzu and at other times as  
23 necessary to inform landowners of the provisions of this subsection.  
24 The information material shall also include:

- 1           a.    information detailing the process by which an  
2                   interested landowner may receive assistance pursuant  
3                   to this subsection for the removal of thistles, poison  
4                   hemlock, and Kudzu from infested property,  
5           b.    the telephone number of the Department, and  
6           c.    a statement informing the landowner that failure to  
7                   remove musk thistles, Scotch thistles, ~~and~~ Canada  
8                   thistles, poison hemlock, and Kudzu may subject the  
9                   landowner to legal action requiring the treatment,  
10                  control, or eradication of these thistles, poison  
11                  hemlock, and Kudzu.

12           C.   Upon request of the landowner or the Department, the  
13   designated Oklahoma State University extension agent for a  
14   particular county shall evaluate or, if there is no extension agent  
15   for a particular county, the Department shall inspect the type of  
16   thistle, poison hemlock, or Kudzu infestation, assess the nature and  
17   extent of the thistle, poison hemlock, or Kudzu infestation on the  
18   property of the landowner, and determine the most appropriate  
19   thistle, poison hemlock, or Kudzu treatment, control, or eradication  
20   method available for the type of thistle, poison hemlock, or Kudzu  
21   and location of the property.

22           SECTION 2.   This act shall become effective November 1, 2025.  
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24           60-1-10280           JL           01/01/25